

COMMITTEE ON GOVERNMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2375
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 9-462.13, Arizona Revised Statutes, is amended
3 to read:

4 9-462.13. Zoning; development; middle housing; applicability;
5 definitions

6 A. On or before January 1, 2026, a municipality with a population
7 of seventy-five thousand persons or more must authorize, by ordinance and
8 incorporate into its development regulations, zoning regulations and other
9 official controls, the development of duplexes, triplexes, fourplexes and
10 townhomes as a permitted use on both of the following:

11 1. All lots zoned for single-family residential use within one mile
12 of the municipality's central business district.

13 2. At least twenty percent of any new development of more than ten
14 contiguous acres.

15 B. The municipality may not do any of the following:

16 1. Discourage the development of middle housing through
17 requirements or actions that individually or cumulatively make
18 impracticable the permitting, siting, or construction of middle housing.

19 2. Restrict middle housing types to less than two floors.

20 3. Restrict middle housing types to a floor area ratio of less than
21 fifty percent.

22 4. Set restrictions, permitting or review processes for middle
23 housing that are more restrictive than those for single-family dwellings
24 within the same zone.

25 5. Require owner occupancy of any structures on the lot.

26 6. Require any structures to comply with a commercial building code
27 or to contain a fire sprinkler.

28 7. Require more than one off-street parking space per unit.

1 C. This section does not prohibit the governing body of a
2 municipality from allowing either of the following:

3 1. Single-family dwellings in areas zoned for single-family
4 dwellings.

5 2. Additional types of middle housing not required under this
6 section.

7 D. This section does not apply to any of the following:

8 1. Areas that are not incorporated.

9 2. Areas that lack sufficient urban services.

10 3. Areas that are not served by water and sewer services.

11 4. Areas that are not zoned for residential use.

12 5. Areas that are not incorporated and are zoned under an interim
13 zoning designation that maintains the area's potential for planned urban
14 development.

15 6. Areas covered under title 48, chapter 6, article 4.

16 7. Any land within the territory in the vicinity of a public
17 airport as defined in section 28-8486 or to the extent this section would
18 interfere with the public airport's ability to comply with the laws,
19 regulations and requirements of the United States related to applying for,
20 receiving or spending federal monies.

21 8. Any land within the territory in the vicinity of a military
22 airport as defined in section 28-8461.

23 9. AREAS THAT ARE DESIGNATED AS A DISTRICT OF HISTORICAL
24 SIGNIFICANCE PURSUANT TO SECTION 9-462.01, SUBSECTION A, PARAGRAPH 10.

25 10. AREAS THAT ARE DESIGNATED AS HISTORIC BY THE MUNICIPALITY.

26 11. AREAS THAT ARE DESIGNATED AS HISTORIC ON THE NATIONAL REGISTER
27 OF HISTORIC PLACES.

28 E. NOTWITHSTANDING ANY OTHER LAW, A MUNICIPALITY MAY ALLOW MIDDLE
29 HOUSING THAT IS DEVELOPED IN AN AREA DESIGNATED AS HISTORIC BY THE
30 MUNICIPALITY OR IN AN AREA THAT IS DESIGNATED AS HISTORIC ON THE NATIONAL
31 REGISTER OF HISTORIC PLACES ONLY IF THE MIDDLE HOUSING IS DESIGNED TO BE
32 COMPATIBLE WITH THE HISTORIC CHARACTER, SCALE AND SETTING OF THE
33 SURROUNDING AREA.

34 F. FOR MIDDLE HOUSING THAT IS DEVELOPED PURSUANT TO SUBSECTION E OF
35 THIS SECTION:

36 1. THE MUNICIPALITY MAY REQUIRE THAT THE MIDDLE HOUSING COMPLY WITH
37 THE OBJECTIVE HISTORIC PRESERVATION OR DESIGN STANDARDS ADOPTED BY THE
38 MUNICIPALITY OR, IF THE MUNICIPALITY HAS NOT ADOPTED HISTORIC PRESERVATION
39 OR DESIGN STANDARDS, WITH THE UNITED STATES SECRETARY OF THE INTERIOR'S
40 STANDARDS FOR THE TREATMENT OF HISTORIC PROPERTIES, INCLUDING THE
41 STANDARDS GOVERNING REHABILITATION AND NEW CONSTRUCTION.

42 2. THE MUNICIPALITY MAY REGULATE OBJECTIVE STANDARDS, INCLUDING
43 BUILDING HEIGHT, MASSING, LOT COVERAGE, SETBACKS, ROOF FORM, SITE LAYOUT
44 AND OVERALL BUILDING VOLUME.

45 3. MIDDLE HOUSING MAY NOT EXCEED THE MAXIMUM BUILDING HEIGHT, LOT
46 COVERAGE OR FLOOR AREA RATIO THAT IS ALLOWED BY APPLICABLE ZONING
47 REGULATIONS THAT WERE ADOPTED BEFORE JANUARY 1, 2025.

1 G. UNLESS STRICTER ZONING REGULATIONS ARE REQUIRED BY APPLICABLE
2 HISTORIC PRESERVATION STANDARDS, A MUNICIPALITY MAY REQUIRE ADMINISTRATIVE
3 SITE PLAN REVIEW SOLELY FOR THE PURPOSE OF CONFIRMING COMPLIANCE WITH
4 APPLICABLE OBJECTIVE STANDARDS, BUT MAY NOT REQUIRE A PUBLIC HEARING,
5 VARIANCE, CONDITIONAL USE PERMIT, SPECIAL PERMIT OR OTHER DISCRETIONARY
6 APPROVAL PROCESS FOR DEVELOPING MIDDLE HOUSING PURSUANT TO SUBSECTION E OF
7 THIS SECTION.

8 H. NOTWITHSTANDING ANY OTHER LAW, MIDDLE HOUSING MAY NOT BE
9 DEVELOPED ON A SITE WHERE A STRUCTURE THAT IS LISTED ON OR IS ELIGIBLE FOR
10 DESIGNATION ON THE NATIONAL REGISTER OF HISTORIC PLACES WAS DEMOLISHED
11 WITHOUT THE REQUIRED MUNICIPAL DEMOLITION PROCESS AND REQUIRED PUBLIC
12 NOTICE. PUBLIC INPUT THAT IS CONDUCTED SOLELY FOR THE PURPOSE OF
13 DEVELOPING MIDDLE HOUSING ON A SITE PURSUANT TO THIS SUBSECTION MAY NOT BE
14 USED TO AUTHORIZE THE MIDDLE HOUSING DEVELOPMENT.]

15 ~~[F.]~~ [I.] If a municipality does not adopt the regulations
16 required by this section on or before January 1, 2026, middle housing
17 shall be allowed on all lots in the municipality zoned for single-family
18 residential use without any limitations.

19 ~~[F.]~~ [J.] This section does not change or otherwise impair the
20 terms of any development agreement that exists on September 14, 2024.

21 ~~[G.]~~ [K.] Notwithstanding subsection A of this section, a utility
22 provider impacted by a development being developed pursuant to this
23 section shall have the opportunity to review and approve the site plan for
24 the development.

25 ~~[H.]~~ [L.] For the ~~purpose~~ **PURPOSES** of this section:

26 1. "Building code":

27 (a) Means a construction code adopted by a municipality.

28 (b) Includes a model building code, commercial code, plumbing and
29 mechanical code, electric code, energy conservation code, fire code,
30 property maintenance code, neighborhood preservation code, antiblight code
31 or other similar code.

32 2. "Central business district" means an area or series of areas
33 designated by a municipality that are primarily nonindustrial and that
34 attract community activity, including the entire geographic area that the
35 municipality has officially designated as its downtown or equivalent on
36 September 14, 2024.

37 3. "Duplex" means two dwelling units on the same parcel or lot in
38 attached, detached or semidetached arrangements that are designed for
39 residential occupancy by not more than two households living independently
40 from each other.

41 4. "Floor area ratio" means the ratio of allowed square footage in
42 a middle housing project to the square footage of the parcel on which it
43 is built.

44 5. "Fourplex" means four dwelling units on the same parcel or lot
45 in attached, detached or semidetached arrangements that are designed for
46 residential occupancy by not more than four households living
47 independently from each other.

1 6. "Household" means either:

2 (a) A single person living or residing in a dwelling or place of
3 residence.

4 (b) Two or more persons living together or residing in the same
5 dwelling or place of residence.

6 7. "Middle housing":

7 (a) Means buildings that are compatible in scale, form and
8 character with single-family houses and that contain two or more attached,
9 detached, stacked or clustered homes.

10 (b) Includes duplexes, triplexes, fourplexes and townhouses.

11 8. "Permitted use" means the ability for a development to be
12 approved without requiring a public hearing, variance, conditional use
13 permit, special permit or special exception, other than a discretionary
14 zoning action to ~~determination~~ DETERMINE that a site plan conforms with
15 applicable zoning regulations.

16 9. "Townhouses" means dwelling units that are constructed in a row
17 of two or more attached units in which each dwelling unit shares at least
18 one common wall with an adjacent unit and that are accessed by separate
19 outdoor entrances.

20 10. "Triplex" means three dwelling units on the same parcel or lot
21 in attached, detached or semidetached arrangements that are designed for
22 residential occupancy by not more than three households living
23 independently from each other.

24 <<Sec. 2. Emergency

25 [This act is an emergency measure that is necessary to preserve the
26 public peace, health or safety and is operative immediately as provided by
27 law.]>>

28 Enroll and engross to conform

29 Amend title to conform

And, as so amended, it do pass

WALT BLACKMAN
CHAIRMAN

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